

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:	)	
Joshua Stumpff	)	Docket No. 2023-161
License No. 068.0134128	)	Docket No. 2024-188

ORDER ON MOTION FOR REINSTATEMENT

On June 20, 2025, the Vermont Board of Allied Mental Health Practitioners ("the Board") considered Respondent's request for reinstatement of his Licensed Clinical Mental Health Counselor ("LCMHC") filed on May 27, 2025. This request stated that Respondent had fulfilled all requirements prerequisite to reinstatement imposed by the Board's December 21, 2023, Order. Further, the request asked that Respondent's license be further conditioned pursuant to the Board's May 15, 2025, Order.

The State responded to this request on June 2, 2025, agreeing that Respondent had met all requirements for reinstatement imposed by the December 21, 2023, Order. Further, that Response agreed to the reinstatement of Respondent's license subject to the conditions imposed by the Board's December 21, 2023, Order in Docket No. 2023-161 (according to Section B of that Order, being "whatever terms the Board finds reasonable" at this time) and the Board's Order dated May 15, 2025, in Docket No. 2024-188, ultimately deferring to the Board's final judgment as to terms sufficient to provide appropriate safeguards to practice for Respondent during the period of his conditioned license.

At the June 20, 2025, hearing on the request for reinstatement, the Board voted to delegate its authority to rule on the request to an Administrative Law Officer in order to prevent any further delay in the disposition of this matter.

Having reviewed the documents on file in this matter and determined what conditions are sufficient to provide appropriate safeguards to practice for Respondent during the period in which his license is subject to conditions, Respondent's license shall be reinstated subject to the following conditions:

Therefore, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's LCMHC license is hereby reinstated as of the date of entry of this Order.
- B. Respondent's LCMHC license is hereby **REPRIMANDED**.
- C. Respondent's LCMHC license is hereby **CONDITIONED** commencing with the date of entry of this Order. The conditions are as follows:

1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

2. Length of Time Conditions Imposed: The conditions shall remain in place until Respondent has completed all conditions as ordered. Respondent shall be subject to the conditions until Respondent completes a minimum of eighteen (18) months of LCMHC practice in which he works at least twenty (20) hours every two (2) weeks as a LCMHC. Hours of fewer than twenty (20) hours every two (2) weeks shall be credited on a prorated basis.

3. Notification to Employers Program Director: Respondent shall provide a copy of this Order to all employers in any current or future setting in which Respondent practices as a LCMHC and inform them of Respondent's conditional license status. Within ten (10) days of the date of entry of this Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Case Manager for approval an employer agreement form, acknowledging receipt of the Order and the ability to comply with the conditions in the Order.

4. Reports from Employers Program Director: Within one (1) month of the date of this order or within one (1) month of commencing employment in a work setting other than his solo private practice and monthly thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit an evaluation of Respondent's work performance and attendance during that month. These reports shall be submitted in writing on forms issued or approved by the Enforcement Case Manager and shall indicate satisfactory performance and attendance

5. Supervision: Respondent must have general supervision of his practice by a pre-approved LCMHC licensed in Vermont or other pre-approved licensed mental health practitioner, who must be in good standing with the State of Vermont.

In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at his own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about boundaries, ethics, documentation, as well as the therapeutic rationale for various clinical decisions, such as dual relationships, ethical boundaries and other ethical and clinical issues. Respondent's consultation with his Supervisor shall take place no less than once per week by videoconference (or similar) or in person.

The pre-approved Supervisor shall provide monthly reports identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical

violations, boundary transgressions, or other practice issues or concerns. Respondent shall be responsible for locating a Supervisor and sending the name, contact information, credentials and curriculum vitae of the proposed mentor to the Enforcement Case Manager as part of the pre-approval process.

6. Out-of-State-Practice: Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval prior to Respondent practicing as a LCMHC outside the State of Vermont. If Respondent fails to receive such approval before practicing as a LCMHC outside the State of Vermont, none of the time spent practicing out-of-state will be credited toward the fulfillment of the terms and conditions of this Order. Approval will be given for out-of-state LCMHC practice if the Director of Professional Regulation, in his or her sole discretion, finds that Respondent's planned out-of-state practice does not compromise the supervisory or protective purposes of this Order.

7. Notification of Place of Employment Personal Address Telephone Number: Within five (5) days of the date of entry of this Order, Respondent shall notify the Office of Professional Regulation, in writing, of his current place of employment, personal address, and telephone number, as well as the name of any mental health educational programs in which he is enrolled. Respondent shall further notify the Office of Professional Regulation, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.

8. Notification to Other States: In the event Respondent is licensed in a mental health profession in any other state(s), he must inform the licensing Board of the state(s) in which Respondent is licensed of the conditional status of his Vermont LCMHC license within thirty (30) days of the date of entry of this Order. If Respondent fails to provide such notification, it will be considered a violation of this Order.

9. License Renewal: If Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice as a LCMHC, Respondent must timely apply for renewal, pay the applicable fee and demonstrate that he has otherwise complied with the requirements for license renewal.

10. Costs: Respondent shall bear all costs of complying with this Order.

11. Violation of this Order: Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

12. Completion of Conditional License Period: After the minimum conditional license period and completion of the required coursework, Respondent may petition to remove any or all conditions on his license. Respondent must present proof that he has fully complied with the terms of this Order.



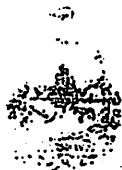
- D. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain licensure, for license renewal, and for license reinstatement.
- E. This Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- F. This Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

Dated: JULY 7, 2025

By: Gray K. Belcher

Administrative Law Officer
On behalf of
Board of Allied Mental Health Practitioners

Date of Entry: 7/7/25





State of Vermont
Office of the Secretary of State

Office of Professional Regulation
89 Main Street, 3rd Floor
Montpelier, VT 05620-3402
sos.vermont.gov

Sarah Copeland Hanzas, Secretary of State
S. Lauren Hibbert, Deputy Secretary
Michael D. Warren, Interim Director

May 27, 2025

George Hasselback, Esq.
Office of Professional Regulation
89 Main Street, 3rd Floor
Montpelier, VT 05620-3402

Case: Joshua Stumpff
Credential: License # 068.01341128
Docket No: 2023-161 & 2024-188

Dear Attorney Hasselback:

Please find the enclosed Petition to Reinstate License filed on the above captioned docket numbers. Pursuant to the Office of Professional Regulation's Administrative Rule 3.8 you have 10 days to respond to the motion.

You may contact me at (802) 828-2367 if you have any questions.

Sincerely,

/s/ Julie Bowen
Docket Clerk

Enc: *Request to*

Cc: Elizabeth Kneen, Case Manager
Andrew Pappone, Esq., Respondent's Attorney

STATE OF VERMONT

**In re Joshua Stumpff
Docket No. 2023-161
Docket No. 2024-188**

PETITION FOR REINSTATEMENT

NOW COMES Joshua Stumpff, by and through undersigned counsel, and moves this board to reinstate his license as a Licensed Clinical Mental Health Counselor subject to the conditions recommended by Dr. Donnelly. See “Independent Evaluation Report” by Dr. John Donnelly, attached as Exhibit A and the conditions outlined in the Order in Docket 2024-188.

On December 4, 2023 Mr. Stumpff and the Board agreed and entered into a stipulation which was approved by the chairperson of the Board on December 21, 2023 and attached as Exhibit B. The stipulation set forth requirements that Mr. Stumpff must satisfy to become eligible for reinstatement. Mr. Stumpff has completed these requirements as listed below and attaches the supporting documents as noted.

- Obtain an Independent Mental Health Evaluation by a preapproved Evaluator. On April 1, 2024 Mr. Stumpff asked that the Board approve Dr. John Donnelly and approval was granted on April 2, 2024. See Emails attached as Exhibit C. Dr. Donnelly completed an evaluation finding Mr. Stumpff fit to return to practice with some conditions, discussed later. As noted, his evaluation is attached as Exhibit A.**
- Enter into a Mental Health Treatment Plan if recommended by evaluator. No mental health treatment was recommended in Dr. Donnelly’s report. However, Mr. Stumpff has continued to pursue counseling with his own counselor.**
- Successfully complete 10 hours of pre-approved coursework. On January 4, 2024, the Board approved several courses proposed by Mr. Stumpff. See Emails attached as**

Exhibit D. Mr. Stumpff completed four courses, totaling 11.5 hours of coursework. See Certificates of Completion attached as Exhibit E.

- Include a Personal Statement, attached here as Exhibit F. Please also see letters of support attached as Exhibits G-I.

On May 15, 2025, the Board approved the stipulation and consent order in Docket 2024-188, attached as Exhibit J. That order set forth some additional provisions under which Mr. Stumpff's license would be conditioned. However, and by design of the parties, the substantive requirement that Mr. Stumpff be supervised for 18 months is the same in both dockets so that the supervision requirement can run concurrently. Based on Mr. Stumpff's completion of the requirements to regain eligibility to have his license reinstated in Docket 2023-161, Mr. Stumpff asks that the Board reinstate his license subject to the conditions set forth in the stipulation and consent order dated December 21, 2023 and attached as Exhibit B and the stipulation and consent order dated May 15, 2025 in Docket 2024-188, and attached as Exhibit J.

Dated at Barre in the County of Washington and State of Vermont this 23rd Day of May, 2025.

Respectfully submitted,
RUBIN, KIDNEY, MYER & VINCENT

By: Andrew Pappone
Andrew Pappone
Attorney for Joshua Stumpff

cc: George Hasselback, Esq.

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Joshua Stumpff) **Docket No. 2024-188**
License No. 068.0134128)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont ("the State") by and through Prosecuting Attorney George Hasselback, and Respondent Joshua Stumpff, by and through their counsel Andrew Pappone, Esq. who hereby stipulate and agree as follows:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Stipulated Facts

Procedural Background:

2. Joshua Stumpff ("Respondent") of Montpelier, Vermont is licensed as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0134128. This license was originally issued on January 11, 2019, and expires on January 31, 2025.
3. On or about November 15, 2023, Respondent's license was indefinitely suspended pending a hearing on the merits of an OPR action, by order of the Board, pursuant to a stipulation by the Parties in Docket Number 2023-161.
4. On or about December 21, 2023, the OPR action was concluded via a Stipulation and Consent Order, signed by the Board, that included conditions prerequisite for reinstatement of Respondent's license.
5. As of the date of the filing of this Specification of Charges, Respondent's license remains indefinitely suspended.

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6. A previously filed motion to reinstate Respondent's license was dismissed with leave to file following the resolution of this matter.

Treatment of TR:

7. Respondent began to provide mental health counseling to a client (hereinafter identified as "TR") in January of 2020.
8. TR initially sought out Respondent to provide mental health counseling for her son who was 15 years old at the time.
9. TR was seeking a therapist for her son to aid in his processing of the death of his sibling who had died of suicide in January of 2020.
10. TR thought that Respondent would be an appropriate therapist for her son, as she was aware that Respondent had lost his sibling to suicide as well.
11. While discussing taking on her son as a client, Respondent asked TR if she had a therapist and recommended that she begin to see Respondent as a therapist.
12. Respondent's first session with TR took place on or about January 21, 2020.
13. The mental health counseling provided to TR by Respondent centered around TR's issues of grief stemming from her son's suicide.
14. During these sessions, TR shared intimate details with Respondent regarding her history as a victim of sexual assault.
15. During these counseling sessions, Respondent shared specific, personal details with TR, including:
 - a. Respondent told TR that, at the time of his sibling's death, Respondent was living with his family in Maine, that they were farmers, that they were "back to landers," and that they were picked on by the locals.
 - b. Respondent told TR that he and his sibling were two years apart in age.
 - c. Respondent told TR about details of a personal conversation that he and his sibling had at the skate park.
 - d. Respondent told TR that his sibling subsequently went home and phoned a priest to tell the priest that he was going to end his own life.
 - e. Respondent told TR that his sibling also called an ambulance service prior to taking his life so that his family would be spared finding his body.
 - f. Respondent told TR that his sibling ended his own life, utilizing a firearm.

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- g. Respondent told TR that his sibling did not leave a suicide note.
 - h. Respondent told TR that Respondent's mother was still having difficulty dealing with the loss of Respondent's sibling some thirty-five years after the death.
 - i. Respondent told TR that his father was abusive.
 - j. Respondent told TR that his still-living brother struggles with depression.
 - k. Respondent told TR that Respondent's sister is his closest confidant.
- 16. TR began to experience emotional transference with Respondent, developing feelings for him, and compromising their therapist/client relationship.
 - 17. Respondent knew or should have known that over-sharing of such personal information with a client carried with it the risk of emotional transference with that client.
 - 18. Even though Respondent should have taken immediate steps to refer TR to another qualified therapist when the emotional transference became apparent as early as August of 2020, he continued to provide mental health counseling services to TR for several months.
 - 19. Respondent referred TR to another therapist on or about November of 2020.
 - 20. This other therapist was known to Respondent, as this therapist had treated Respondent's son previously.
 - 21. On or about November 19, 2020, TR had her first session with that new therapist.
 - 22. Even though Respondent should have terminated his relationship with TR upon TR commencing treatment with the new therapist, Respondent continued to communicate with TR by responding to her phone calls, text messages, and emails.
 - 23. These communications consisted mostly of informal "checking in" with TR.
 - 24. These communications resulted in a further blurring of professional boundaries between Respondent and TR.
 - 25. These communications continued through January of 2021.

Violation One: 3 V.S.A. §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure

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to practice competently includes: (1) Performance of unsafe or unacceptable patient or client care.

- 26. Paragraphs 2 through 25 above are incorporated herein.
- 27. Vermont law requires a LCMHC to practice competently by providing safe and acceptable patient care.
- 28. Paragraphs 2 through 25 above demonstrate that Respondent failed to provide safe and acceptable patient care when Respondent inappropriately shared detailed personal information with TR regarding the death of his sibling, and his personal family dynamics, such that there was a significant risk of emotional transference with TR and when that emotional transference manifested, Respondent failed to react to that transference in a timely fashion, before referring that client to a therapist with which Respondent's son had a previous therapist/client relationship, and then continuing to communicate with TR, once TR had begun treatment with the new therapist.
- 29. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

- 30. Vermont law requires an LCMHC to maintain professional boundaries.
- 31. Paragraphs 2 through 25 above demonstrate that Respondent failed to maintain professional boundaries by inappropriately sharing intimate personal details with TR resulting in emotional transference by TR and then continuing to communicate with TR following this referral.
- 32. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Three: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice.

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- 33. Paragraphs 2 through 25 above are incorporated herein.
- 34. Vermont law requires a LCMHC to conform to the essential standards of acceptable and prevailing practice.
- 35. Paragraphs 2 through 25 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice in the following ways:

- a. The applicable standards of practice require that a LCMHC refrain from inappropriately sharing intimate personal details with a client, and Respondent shared significantly intimate details of the death of his sibling, and his personal family dynamic with TR.
 - b. The applicable standards of practice require that a LCMHC take reasonable and timely steps to transfer the care of a client when it becomes apparent that the client has experienced emotional transference and that this transference has compromised the therapist/client relationship, and Respondent failed to take timely steps to do so when it was apparent that the clinical relationship between Respondent and TR had been compromised.
 - c. The applicable standards of practice require that a LCMHC, upon transfer of a client to a new therapist due to the therapist/client relationship being compromised by emotional transference, refrain from continuing to communicate with that previous client inappropriately including responding to calls, messages, and emails providing emotional support and guidance to the former patient, and Respondent continued to take calls, return texts, and speak with TR following her transfer to a new therapist.
36. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Understandings

1. Respondent admits the facts above are true and the conditions below are necessary to protect the public.
2. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
3. Respondent specifically waives any claim that any disclosures made to the Board during review of this agreement have prejudiced Respondent's right to a fair and impartial hearing if this agreement is not accepted and proceeds to a hearing on the merits before the same Board.
4. Respondent has read and reviewed this entire document and agrees it contains the entire agreement between the parties.
5. Respondent is not under the influence of any drugs or alcohol at the time of signing this Stipulation and Consent Order.
6. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.

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7. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
8. Respondent understands that they are responsible for all compliance costs associated with this Stipulation and Consent Order.
9. Respondent agrees the Board may enter the Order set forth below.

ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

A. The discipline imposed by this Order shall be in addition to any additional discipline imposed by the Board (if any) stemming from the matters contained in Docket Number 2023-161.

B. If reinstated, Respondent's LCMHC license is hereby **REPRIMANDED**.

C. Respondent's LCMHC license is hereby **CONDITIONED** commencing with the date of reinstatement of his license. The conditions are as follows:

1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."
2. Length of Time Conditions Imposed: The conditions shall remain in place until Respondent has completed all conditions as ordered. Respondent shall be subject to the conditions until Respondent completes a minimum of eighteen (18) months of LCMHC practice in which he works at least twenty (20) hours every two (2) weeks as a LCMHC. Hours of fewer than twenty (20) hours every two (2) weeks shall be credited on a prorated basis.
3. Notification to Employers/Program Director: Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices as a LCMHC and inform them of Respondent's conditional license status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Case Manager for approval an employer agreement form, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
4. Reports from Employers/Program Director: Within one (1) month of the date of this order or within one (1) month of commencing employment in a work setting other than his solo private practice and monthly thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit an evaluation of Respondent's work performance and

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attendance during that month. These reports shall be submitted in writing on forms issued or approved by the Enforcement Case Manager and shall indicate satisfactory performance and attendance.

5. **Supervision:** Respondent must have general supervision of his practice by a pre-approved LCMHC licensed in Vermont or other pre-approved licensed mental health practitioner, who must be in good standing with the State of Vermont.

In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at his own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about boundaries, ethics, documentation, as well as the therapeutic rationale for various clinical decisions, such as dual relationships, ethical boundaries and other ethical and clinical issues. Respondent's consultation with his Supervisor shall take place no less than once per week by videoconference (or similar) or in person.

The pre-approved Supervisor shall provide monthly reports identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical violations, boundary transgressions, or other practice issues or concerns. Respondent shall be responsible for locating a Supervisor and sending the name, contact information, credentials and curriculum vitae of the proposed mentor to the Enforcement Case Manager as part of the pre-approval process.

6. **Out-of-State-Practice:** Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval prior to Respondent practicing as a LCMHC outside the State of Vermont. If Respondent fails to receive such approval before practicing as a LCMHC outside the State of Vermont, none of the time spent practicing out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. Approval will be given for out-of-state LCMHC practice if the Director of Professional Regulation, in his or her sole discretion, finds that Respondent's planned out-of-state practice does not compromise the supervisory or protective purposes of this Stipulation and Consent Order.

7. **Notification of Place of Employment/Personal Address/Telephone Number:** Within five (5) days of the date of entry of this Consent Order, Respondent shall notify the Office of Professional Regulation, in writing, of his current place of employment, personal address, and telephone number, as well as the name of any mental health educational programs in which he is enrolled.

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Respondent shall further notify the Office of Professional Regulation, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.

8. **Notification to Other States:** In the event Respondent is licensed in a mental health profession in any other state(s), he must inform the licensing Board of the state(s) in which Respondent is licensed of the conditional status of his Vermont LCMHC license within thirty (30) days of the date of entry of this Order. If Respondent fails to provide such notification, it will be considered a violation of this Order.
 9. **License Renewal:** If Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice as a LCMHC, Respondent must timely apply for renewal, pay the applicable fee and demonstrate that he has otherwise complied with the requirements for license renewal.
 10. **Costs:** Respondent shall bear all costs of complying with this Consent Order.
 11. **Violation of this Order:** Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.
 12. **Completion of Conditional License Period:** After the minimum conditional license period and completion of the required coursework, Respondent may petition to remove any or all conditions on his license. Respondent must present proof that he has fully complied with the terms of this Order.
- D. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain licensure, for license renewal, and for license reinstatement.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- F. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be considered relative to any future disciplinary matter.

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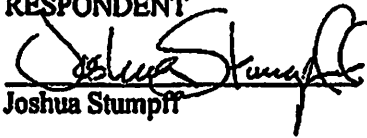
AGREED TO:

Dated: 5/13/2025

STATE OF VERMONT
SECRETARY OF STATE

By: George Hasselback
George L. Hasselback
Prosecuting Attorney
George.hasselback@vermont.gov

Dated: 5/12/2025

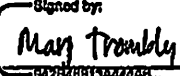
RESPONDENT
By: 
Joshua Stumpf

Dated: 5/13/25

ATTORNEY FOR RESPONDENT
By: Andrew Pappone
Andrew Pappone, Esq.

APPROVED AND SO ORDERED:

Dated: 5/15/25

By: 
Chairperson

Date of Entry: 5/15/25

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Joshua Stumpff) **Docket No. 2024-188**
License No. 068.0134128)

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont ("the State") and makes the following charges against Joshua Stumpff ("Respondent"):

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Statement of Facts

Procedural Background:

2. Joshua Stumpff ("Respondent") of Montpelier, Vermont is licensed as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0134128. This license was originally issued on January 11, 2019, and expires on January 31, 2025.
3. On or about November 15, 2023, Respondent's license was indefinitely suspended pending a hearing on the merits of an OPR action, by order of the Board, pursuant to a stipulation by the Parties.
4. On or about December 21, 2023, the OPR action was concluded via a Stipulation and Consent Order, signed by the Board, that included conditions prerequisite for reinstatement of Respondent's license.
5. As of the date of the filing of this Specification of Charges, Respondent's license remains indefinitely suspended, although there is a motion to reinstate Respondent's license pending before the Board.

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Treatment of TR:

6. Respondent began to provide mental health counseling to a client (hereinafter identified as "TR") in January of 2020.
7. TR initially sought out Respondent to provide mental health counseling for her son who was 15 years old at the time.
8. TR was seeking a therapist for her son to aid in his processing of the death of his sibling who had died of suicide in January of 2020.
9. TR thought that Respondent would be an appropriate therapist for her son, as she was aware that Respondent had lost his sibling to suicide as well.
10. While discussing taking on her son as a client, Respondent asked TR if she had a therapist and recommended that she begin to see Respondent as a therapist.
11. Respondent's first session with TR took place on or about January 21, 2020.
12. The mental health counseling provided to TR by Respondent centered around TR's issues of grief stemming from her son's suicide.
13. During these sessions, TR shared intimate details with Respondent regarding her history as a victim of sexual assault.
14. From the beginning of their therapeutic relationship, Respondent was flirtatious with TR.
15. In April of 2020, Respondent called TR outside of their scheduled therapy sessions.
16. During this conversation, TR told Respondent that she cared about him.
17. During this conversation, Respondent told TR that he cared about her too.
18. During this conversation, TR then asked Respondent if he should "talk to someone" about this revelation.
19. During this conversation, Respondent told TR that he did not have anyone like that to talk to, and TR suggested that Respondent seek out someone to discuss this with.
20. In subsequent sessions, Respondent continued to be flirtatious with TR.
21. Respondent informed TR that he was not married.
22. Respondent informed TR on several occasions that he was not in a relationship with anyone.
23. On one occasion, Respondent invited TR to go on a kayaking excursion with him.

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24. During the summer of 2020, TR decided to reciprocate the flirting with Respondent.
25. At a therapy session conducted in August of 2020, Respondent told TR, "When you wake up in the morning, know that I want to text you," or words to that effect.
26. During a telephonic therapy session in September of 2020, TR asked Respondent if he knew that she had a crush on him.
27. Respondent answered, "yes."
28. At the next appointment, Respondent explained that he could not act on his feelings towards TR.
29. At a therapy session at the end of September 2020, Respondent professed romantic feelings towards TR.
30. TR then questioned whether Respondent could still be her therapist considering his feelings towards her.
31. Respondent told TR that he could still, "do [his] job," or words to that effect.
32. During these counseling sessions, Respondent shared specific, personal details with TR, including:
 - a. Respondent told TR that, at the time of his sibling's death, Respondent was living with his family in Maine, that they were farmers, that they were "back to landers," and that they were picked on by the locals.
 - b. Respondent told TR that he and his sibling were two years apart in age.
 - c. Respondent told TR that on the day his sibling passed away, Respondent and his sibling met at a local skate park.
 - d. Respondent told TR about details of a personal conversation that he and his sibling had at the skate park.
 - e. Respondent told TR that his sibling subsequently went home and phoned a priest to tell the priest that he was going to end his own life.
 - f. Respondent told TR that his sibling also called an ambulance service prior to taking his life so that his family would be spared finding his body.
 - g. Respondent told TR that his sibling ended his own life, utilizing a firearm.
 - h. Respondent told TR that he believed that his sibling's suicide was "graceful."

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- i. Respondent told TR that his sibling did not leave a suicide note.
 - j. Respondent told TR that Respondent's mother was still having difficulty dealing with the loss of Respondent's sibling some thirty-five years after the death.
 - k. Respondent told TR that his father was abusive.
 - l. Respondent told TR that his still-living brother struggles with depression.
 - m. Respondent told TR that Respondent's sister is his closest confidant.
 - n. Respondent told TR that Respondent struggles with alcohol dependency.
33. Due to the flirtatious behavior of Respondent and his over-sharing of personal information, TR began to experience emotional transference with Respondent, developing feelings for him, and compromising their therapist/client relationship.
34. Respondent knew or should have known that the inappropriate flirtatious behavior and over-sharing of such personal information with a client carried with it the risk of emotional transference with that client.
35. Even though Respondent should have taken immediate steps to refer TR to another qualified therapist when the emotional transference became apparent as early as August of 2020, he continued to provide mental health counseling services to TR for several months.
36. Respondent referred TR to another therapist on or about November of 2020.
37. This other therapist was known to Respondent, as this therapist had treated Respondent's son previously.
38. On or about November 19, 2020, TR had her first session with that new therapist.
39. Even though Respondent should have terminated his relationship with TR upon TR commencing treatment with the new therapist, Respondent continued to communicate with TR through phone calls, text messages, and emails.
40. These communications consisted mostly of informal "checking in" with TR.
41. These communications resulted in a further blurring of professional boundaries between Respondent and TR.
42. These communications continued through January of 2021.

Violation One: 3 V.S.A. §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure

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to practice competently includes: (1) Performance of unsafe or unacceptable patient or client care.

- 43. The State re-alleges and incorporates Paragraphs 2 through 42 above.
- 44. Vermont law requires a LCMHC to practice competently by providing safe and acceptable patient care.
- 45. Paragraphs 2 through 42 above demonstrate that Respondent failed to provide safe and acceptable patient care when Respondent was flirtatious with and inappropriately shared detailed personal information with TR regarding the death of his sibling, his own struggles with alcohol abuse, and his personal family dynamics, such that there was a significant risk of emotional transference with TR and when that emotional transference manifested, Respondent failed to react to that transference in a timely fashion, before referring that client to a therapist with which Respondent's son had a previous therapist/client relationship, and then continuing to foster an informal relationship with TR, once TR had begun treatment with the new therapist.
- 46. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

- 47. Vermont law requires a LCMHC to maintain professional boundaries.
- 48. Paragraphs 2 through 42 above demonstrate that Respondent failed to maintain professional boundaries by being flirtatious with and inappropriately sharing intimate personal details with TR resulting in emotional transference by TR and then continuing to foster an informal relationship with TR following this referral.
- 49. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Three: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice.

- 50. The State re-alleges and incorporates Paragraphs 2 through 42 above.
- 51. Vermont law requires a LCMHC to conform to the essential standards of acceptable and prevailing practice.

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52. Paragraphs 2 through 42 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice in the following ways:
- a. The applicable standards of practice require that a LCMHC refrain from being flirtatious with and inappropriately sharing intimate personal details with a client, and Respondent was flirtatious with TR and shared significantly intimate details of the death of his sibling, his struggles with alcohol abuse, and his personal family dynamic with TR.
 - b. The applicable standards of practice require that a LCMHC take reasonable and timely steps to transfer the care of a client when it becomes apparent that the client has experienced emotional transference and that this transference has compromised the therapist/client relationship, and Respondent failed to take timely steps to do so when it was apparent that the clinical relationship between Respondent and TR had been compromised.
 - c. The applicable standards of practice require that a LCMHC, upon transfer of a client to a new therapist due to the therapist/client relationship being compromised by emotional transference, refrain from continuing to communicate with that previous client inappropriately including frequent calls, messages, and emails "checking in" and providing emotional support and guidance to the former patient, and Respondent continued to call, text, and speak with TR following her transfer to a new therapist in order to continue to foster an informal relationship with TR.
53. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Relief Requested

WHEREFORE, the State of Vermont respectfully requests that Respondent's license be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 27 day of November, 2024.

STATE OF VERMONT
SECRETARY OF STATE

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